

Stereo.HCJDA 38.
JUDGMENT SHEET.

**LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT**

I.C.A No.111 of 2023

RIZWAN ALI SAYAL.

Versus.

FEDERATION OF PAKISTAN, ETC.

JUDGMENT.

Date of hearing:	<u>13.04.2026.</u>
Appellant by:	Mr. Tanveer Iqbal, Advocate.
Respondents No.1 to 4 by:	Mr. Arshad Mahmood, Assistant Attorney General for Pakistan.
Respondent No.5 by:	Mr. Asfandyar Khan Tareen, Advocate.

Mirza Viqas Rauf, J. The appellant herein, being the citizen of Pakistan and a taxpayer, invoked the constitutional jurisdiction of this Court by filing W.P.No.1938 of 2023 so as to challenge the appointment of respondent No.5 (hereinafter referred to as “**respondent**”) as Member Judicial, Appellate Tribunal Inland Revenue (hereinafter referred to as “**ATIR**”) mainly on the ground that he was nominated in FIR No.297 of 2005 dated 09th August, 2005, offence under sections 420, 468 and 471 of the Pakistan Penal Code, 1860 registered at Police Station Cantt. Sargodha and though was acquitted ultimately but on account of compromise, which by itself casts serious aspersions on his character. The constitutional petition was filed as a *pro bono publico* and it was in the form of writ of *quo warranto* as outlined in Article 199(1)(b)(ii) of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter referred to as “**Constitution**”). The constitutional petition remained under consideration before a learned Single Bench of this Court, who ultimately proceeded to dismiss the same vide judgment dated 19th September, 2023, which is now

I.C.A No.111 of 2023

impugned through this Intra Court Appeal in terms of section 3 of the Law Reforms Ordinance, 1972.

2. Learned counsel for the appellant contended that appointment of the **respondent** as Member Judicial, **ATIR** was on probation for a period of one year and he was to be governed under Civil Servants Act, 1973. Learned counsel added that proviso to section 6 of the Civil Servants Act, 1973 requires satisfactory character verification for a civil servant on probation but the **respondent** was appointed without due compliance to said provision of law. Learned counsel emphasized that the **respondent** admittedly was a nominated accused in a criminal case and though he was acquitted but it was on the basis of compromise, which cannot be termed as an honourable acquittal. Learned counsel submitted that the **respondent** is though not eligible to hold the post for which he was appointed but the learned Single Judge in Chambers proceeded to dismiss the constitutional petition. It is argued with vehemence that judgment under appeal is not tenable. In order to supplement his contentions, learned counsel has placed reliance on PRESIDENT NATIONAL BANK OF PAKISTAN and others v. WAQAS AHMED KHAN (2023 SCMR 766), MIRZA SHAHZEB v. CITY POLICE OFFICER, POLICE LINE, RAWALPINDI and 4 others (2023 PLC (C.S.) 749), SAQIB ALI v. GOVERNMENT OF PUNJAB and others (2023 PLC (C.S.) 310) and MODEL CUSTOMS COLLECTORATE, ISLAMABAD v. AAMIR MUMTAZ QURESHI (2022 SCMR 1861).

3. Conversely, this appeal is seriously resisted by learned Law Officer as well as learned counsel representing the **respondent**.

4. Heard. Record perused.

5. Before attending the respective submissions of both the sides, we would like to first delve into scope of writ of *quo warranto* as is enshrined in Article 199(1)(b)(ii) of the **Constitution**. For ready reference, same is reproduced below: -

I.C.A No.111 of 2023

“199. (1) Subject to the Constitution, a High Court may, if it is satisfied that no other adequate remedy is provided by law,—

(a) -----

(i) -----

(ii) -----

(b) on the application of any person, make an order—

(i) -----

(ii) requiring a person within the territorial jurisdiction of the Court holding or purporting to hold a public office to show under what authority of law he claims to hold that office; or

;

;

;

6. Article 199 of the **Constitution** recognizes different kinds of writs including the writ of *quo warranto*, which is meant to determine the authority and legal right of a person to hold a public office. The proceedings in terms of writ of *quo warranto* are in the nature of inquisitorial and not adversarial. We are mindful of the fact that for invoking the constitutional jurisdiction of this Court for issuance of writ of *quo warranto*, it is not necessary that the person should be aggrieved as is required in the case of writ of mandamus, certiorari or prohibition. Anybody can move for issuance of writ of *quo warranto* as a whistleblower but blowing of whistle must be for benefit of public in general and not for personal vengeance and gains with malafide intent. The very issuance of writ of *quo warranto* is dependent upon the judicial conscious of the Court and it cannot be claimed as a matter of right by the person, approaching the Court. Needless to observe that the principles of equity and conscience are the guiding factors for issuance of writ of *quo warranto* on one hand and simultaneously Court has to ensure that person holding the public office is legally entitled to hold such office and his status is not tainted with any patent deficiency. At the same time, writ of *quo warranto* cannot be issued as a run-of-the-mill case and the Court is supposed to exercise its jurisdiction in exceptional and rare cases where it is satisfied, without any hint of doubt, that a person holding such office is suffering with apparent legal infirmity. Before issuance of writ of *quo warranto*, the Court has to also examine the bonafides of the person bringing such petition before the

I.C.A No.111 of 2023

Court and if there is an iota of doubt about the bonafide, the Court can refuse to exercise its constitutional jurisdiction. Reliance to this effect can be placed on MUHAMMAD SHAHID AKRAM v. GOVERNMENT OF THE PUNJAB through Chief Secretary and 3 others (2016 PLC (C.S.) 1335).

7. The **respondent** was appointed as a Judicial Member, **ATIR** through notification dated 26th April, 2019 by the Government of Pakistan, Law and Justice Division on the recommendation of Federal Public Service Commission in exercise of powers conferred by section 130(3) of the Income Tax Ordinance, 2001 (hereinafter referred to as “**Ordinance**”). It was noted therein that services of the **respondent** will be governed under the Civil Servants Act, 1973 (hereinafter referred to as “**Act, 1973**”) and he will be on probation for one year, extendable for a further period of one year with effect from the date of joining. Before proceeding further, we deem it apt to first have a recourse to section 130 of the **Ordinance**: -

“130. Appointment of the Appellate Tribunal:-

(1) There shall be established an Appellate Tribunal to exercise the functions conferred on the Tribunal by this Ordinance.

(2) The Appellate Tribunal shall consist of a chairperson and such other judicial and accountant members as are appointed by the Federal Government having regard to the needs of the Tribunal.

(3) A person may be appointed as a judicial member of the Appellate Tribunal if the person:-

(a) has exercised the powers of a District Judge and is qualified to be a Judge of the High Court;

(b) is or has been an advocate of a High Court and is qualified to be a Judge of the High Court;

(c) is an officer of Inland Revenue Service in BS20 or above and is a law graduate.

(underlining supplied for emphasis)

8. There is no cavil to the effect that at the time of his appointment, the **respondent** was fulfilling all the preconditions laid down in sub-section 3 of section 130 of the **Ordinance** for appointment as Judicial Member, **ATIR**. Section 130 of the **Ordinance** though

I.C.A No.111 of 2023

prescribes the basic qualifications for a person to be appointed as a Member Judicial, **ATIR** but it does not provide any restrictions or conditions relating to antecedents or the character of the person appointed as such. The qualifications, experience, age limit and other conditions for the appointment of the Judicial Members of the **ATIR** were, however, laid down in pursuance of sub-rule (ii) of Rule 3 of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973 (hereinafter referred to as “**Rules**”), published through S.R.O No.5(I)/98 dated 5th January, 1998.

9. In order to examine the worth and force of the objections canvassed by the appellant with regard to appointment of **respondent** as Member Judicial, **ATIR**, we when examined the **Rules**, it is noticed that for the appointment of a Judicial Member of the **ATIR**, there is no such impediment that if a person, who is to be appointed as Judicial Member of the Appellate Tribunal, had remained an accused in some criminal case and ultimately acquitted, would be precluded to be appointed as such. There is also no requirement for a person to be appointed as Judicial Member to disclose his involvement in some criminal case even if he is ultimately acquitted therefrom.

10. We feel no cavil to observe that though it was mentioned in the notification of appointment of **respondent** that his services will be governed under the **Act, 1973** and he will be on probation for a period of one year with effect from the date of joining, extendable for a further period of one year but it does not mean that for attaining the status of regular Judicial Member, the **respondent** has to undergo the rigors mentioned in section 6 of the **Act, 1973**, *stricto sensu*.

11. Adverting to the contention of learned counsel for the appellant that **respondent** though earned an acquittal in the criminal case but as it was on the basis of compromise, so it cannot be termed as an honourable acquittal, suffice to observe that first information report was registered against the **respondent** on the behest of his real paternal

I.C.A No.111 of 2023

uncle over a property dispute, which was amicably settled inter se and resultantly on the basis of compromise he was acquitted. A similar question previously came up under consideration before the Supreme Court of Pakistan in the case of Dr. MUHAMMAD ISLAM v. GOVERNMENT OF N.-W.F.P. through Secretary, Food, Agriculture, Livestock and Cooperative Department, Peshawar and 2 others (1998 SCMR 1993) wherein it was resolved as under: -

“We are inclined to uphold the above view inasmuch as all acquittals even if these are based on benefit of doubt are honourable for the reason that the prosecution has not succeeded to prove their cases against the accused on the strength of evidence of unimpeachable character. It may be noted that there are cases in which the judgments are recorded on the basis of compromise between the parties and the accused are acquitted in consequence thereof. What shall be the nature of such acquittals? All acquittals are certainly honourable. There can be no acquittals, which may be said to be dishonourable. The law has not drawn any distinction between these types of acquittals.”

Reference to the above effect can also be made to MUMTAZ ALI SHAH v. CHAIRMAN, PAKISTAN TELECOMMUNICATION COMPANY LTD., H.Q., ISLAMABAD and 6 others (PLD 2002 Supreme Court 1060) and SUO MOTU CASE NO.03 OF 2017 (PLD 2018 Supreme Court 703).

12. So far judgment in the case of MIRZA SHAHZEB supra is concerned, the petitioners therein applied for their appointments in the police department and their appointments were to be governed by the Police Rules, 1934 wherein Rule 12.14 makes it incumbent that recruits shall be of good character and great care shall be taken in selecting men of a type suitable for police service from the candidates presenting themselves for enrollment. Moreover, in terms of Standing Order No.6 of 2015 as amended through memo dated 1st June, 2018, it is required for all the candidates that they shall submit an affidavit for non-involvement in criminal cases at the time of submission of application forms, which is certainly not the case here. Similarly, case of SAQIB ALI supra heavily relied upon by learned counsel for the appellant is rested on the same facts as that of MIRZA SHAHZEB supra whereas in the case

I.C.A No.111 of 2023

of MODEL CUSTOMS COLLECTORATE, ISLAMABAD supra and PRESIDENT NATIONAL BANK OF PAKISTAN and others supra, the accused were acquitted in exercise of powers conferred under section 265-K of the Code of Criminal Procedure, 1898, which, in our humble opinion with all reverence, are not applicable to the case at hand.

13. We do not feel hesitation to reiterate that issuance of writ of *quo warranto* is within discretionary domain of the superior courts and it cannot be extended as a matter of course. A constitutional court, while being seized with the matter of *quo warranto*, has to examine the conduct and the bonafide of the person invoking the jurisdiction. Writ of *quo warranto* can only be issued in exceptional and extraordinary circumstances and relief in terms thereof should not be extended as a matter of course. In the present case, the candidature of the candidate was duly scrutinized at the time of his appointment to ascertain whether he was qualified in terms of the constitution and the law. In the peculiar facts and circumstances of the case, we are of the candid view that there are serious aspersions on the bonafide of the appellant and findings of the learned Single Judge to this effect are unexceptionable.

14. After having threadbare discussion noted hereinabove, we are of the considered view that the appellant has failed to point out any illegality or material irregularity in the judgment under challenge, so being not persuaded with grounds agitated in this appeal, we **dismiss** the same with no order as to costs.

(Sadaqat Ali Khan)
JUDGE

(Mirza Viqas Rauf)
JUDGE

Approved for reporting.

JUDGE

JUDGE